# Customs (Amendment)

AN ACT TO AMEND THE CUSTOMS ORDINACE.

BE it enactment by the Parliament of the Democratic Socialist Republic of Sri Lanka as follows:-

**[20th June , 1991 ]**

Short title.

**1**.This act may be cited as the Customs (Amendment) Act. No. 24 of 1991.

Amendment of section 17 of Chapter 235.

**2**. Section 17 of the Customs Ordinance (hereinafter referred to as the 'principal enactment") is hereby amended by the repeal of subsection (2) of that section and the substitution therefor of the following new subsection : "

Conversion of foreign currency values of the Republic.

" (2) For the purpose of subsection (1) conversion of foreign currency values to the currency values of the Republic of Sri Lanka shall be made in accordance with such rates of exchange determined by the Director-General and published in the Gazette, as were prevailing on the date of presentation of the bill of entry relating to the goods on which the duty is payable. ".

Amendment of section 22 of the principal enactment. of section

**3**. Section 22 of the principal enactment is hereby amended as follows:-

(a) by the renumbering of subsection (2) of that section as subsection (3) thereof; and

(b) by the insertion immediately after subsection (1) of that section, of the following new subsection: "

" (2) Save as hereinafter provided, this section shall not apply to goods which have been used after importation. ".

Amendment of section 52 of the principal enactment.

**4**. Section 52 of the principal enactment is hereby amended by the substitution, for the words â€œtwo thousand rupees", of the words "one hundred thousand rupees

Amendment of section 109 of the principal enactment.

**5**. Section 109 of the principal enactment is hereby amended by the substitution, for the words "sold by auction to ", of the words "' sold either by auction or tender to ".

Insertion new section 12 of the principal enactment.

**6**. The following new section is hereby inserted immediately after section 127B, and shall have effort as section 127c of the principal enactment : –

"Power to release on bail to be vested in High Court.

127c. No person suspected or accused of an offence under this Ordinance in respect of any goods the value of which exceeds one million rupees, shall be released on bail except by the High Court, in exceptional circumstances. The power conferred on the High Court by this section shall be exercised by the Judge of the High Court holden in the Zone within which the accused resides or the Judge of the High Court holden in the Zone within which the

offence is alleged to have been committed. ".

Replacement of section 145 of the principal enactment.

**7**. Section 145 of the principal enactment is hereby repealed and the following new section substituted therefor:

"Recovery of penalties. 145.

(1) Every penalty and forfeiture in a sum of money incurred under this Ordinance shall carry such rate of interest as may be prescribed by regulations made under this Act from the date on which such penalty or forfeiture is incurred to the date of payment.

(2) All penalties and forfeitures incurred under this Ordinance and any interest thereon may be sued for and recovered by an action instituted in the name of the Attorney-General in the District Court within the local limits of whose jurisdiction the party liable to such penalty or forfeiture resides. Sections 3, 4, 5, 6, 7, 8, 12, 13. 14, 15 and 23 of the Debt Recovery (Special Provisions) Act, No. 2 of 1990 shall, mutatis mutandis, apply to the institution and hearing' of every such action.

(3) Where an action is instituted in a District Court under subsection (2) the Court shall give priority to hearing and disposal of such, action, except where circumstances render it necessary for such other business to be disposed of earlier.".

Amendment of section 154 of the principal enactment

**8**. Section 154 of the principal enactment is hereby amended by the insertion, immediately after subsection.(2) of that section, of the following new subsection:"

" (3) After institution of proceedings in the proper court in respect of any ships, boats, goods or other things the court, may, on the application of the Director-General of Customs and if the claimants do not object thereto, authorise such Director-General to dispose of such ships, boats, goods or other things and deposit the proceeds of sale in court. Where the claimants object to the disposal of such ships, boats, goods or other things the court may require the claimants to deposit cash security, equal to the market value (as assessed by such Director-General) of such ships, boats, goods or other things, in court.".

Repeal section 160 of the principal enactment.

**9** Section 160 of the principal enactment is hereby repealed.

Amendment of section 166 of the principal

**10**. Section 166 of the principal enactment is hereby amended in subsection (1) of that section, by the substitution for the words " one

enactment.

hundred rupees “, of the words “ten thousands rupees”. “ten thousand rupees”.

Sinhala text to prevail in case of inconsistency.

**11**. In the event of any inconsistency between the Sinhala and Tamil texts of this Act, the Sinhala text shall prevail.